



The Price of Inaction: Seattle's Housing Oversight Crisis and the Urgent Call for Tenant Protection

Seattle is facing a housing crisis exacerbated by systemic failures in oversight and enforcement. Critical issues such as unresolved tenant complaints, prolonged inspection delays, and widespread non-compliance with rental property registration requirements have left tenants in unsafe and uninhabitable conditions. The Seattle Department of Construction and Inspections (SDCI), despite its resources, has struggled to protect tenants and enforce basic habitability standards effectively.

Core Issues

Systemic Oversight Gaps:

- Over 369,000 critical data fields missing in Tenant Complaint & Violation Records. Critical for providing equitable outcomes, transparency, and gaging the SDCI's regulatory performance. The missing information undermines housing protections and impacts legislative decisions.
- Thousands of unresolved or prematurely closed complaints, leaving tenants without recourse.
- Delays in inspections with some currently unaddressed for 5+ years., with many cases exceeding required response timelines.
- Unregistered properties operating outside of RRIO compliance, often involved in recurring tenant disputes but still go un
- Complaints are frequently closed with labels such as "No Contact" or "No Violation Observed," even when tenants provide substantial evidence like photos and videos.
- An inherent bias toward landlords, regarded as primary customers, results in excessive leniency in compliance deadlines and enforcement outcomes.

Missed Financial Opportunities:

- Millions of dollars in fines and penalties left uncollected due to enforcement inefficiencies.
- Failure to reinvest compliance revenue into housing safety and tenant protections.
- Non use or misappropriation of funds meant for compliance and housing efforts.

Tenant Safety Risks:

- Prolonged exposure to hazardous conditions, including lack of essential utilities like hot water, working toilets, heat, consistent running water, raw sewage, lead paint, working elevators in high rise buildings, structural risks, fire safety and electrical hazards, unsecured entrances, water intrusion, flooding, unhealthy mold growth.
- Physical Health Hazards: Increased risk of illness and injury due to exposure to unsanitary conditions, hazardous materials, and structural failures.
- Mental Health Impacts: Stress, anxiety, and feelings of helplessness stemming from unsafe living conditions.
- Vulnerability to Crime: Increased risk of theft and violence due to unsecured entrances and poor building security.

- Accessibility Issues: Challenges for individuals with mobility impairments, potentially leading to isolation and health complications.

Safe and habitable housing is a fundamental right, essential to the well-being of Seattle's residents and the fabric of its communities. However, systemic failures within the city's housing compliance and enforcement framework have left countless tenants vulnerable to hazardous conditions, prolonged neglect, and inadequate protections. The Seattle Department of Construction and Inspections (SDCI), while well-resourced and equipped with enforcement tools, has consistently fallen short in fulfilling its mandate to ensure housing safety and equity.

These challenges not only undermine the city's ability to enforce housing standards but also disproportionately affect Seattle's most vulnerable populations, who are left to bear the brunt of unsafe and inequitable housing practices.

```
<iframe src='https://flo.uri.sh/visualisation/20643060/embed' title='Interactive or visual
content' class='flourish-embed-iframe' frameborder='0' scrolling='no'
style='width:100%;height:600px;' sandbox='allow-same-origin allow-forms allow-scripts allow-
downloads allow-popups allow-popups-to-escape-sandbox allow-top-navigation-by-user-
activation'></iframe><div style='width:100%!;margin-top:4px!important;text-
align:right!important;'><a class='flourish-credit'
href='https://public.flourish.studio/visualisation/20643060/?utm_source=embed&utm_campai
gn=visualisation/20643060' target='_top' style='text-decoration:none!important'><img
alt='Made with Flourish' src='https://public.flourish.studio/resources/made_with_flourish.svg'
style='width:105px!important;height:16px!important;border:none!important;margin:0!importa
nt;'> </a></div>
```

Systemic Failures in Seattle’s Housing Oversight

All ▼



Systematic Failures at SDCI – Highlighting the Manipulation of Inspection Data

Seattle’s housing oversight system is in a state of profound crisis, with systemic inefficiencies, data mismanagement, and deliberate field misuse crippling its ability to protect tenants and enforce housing standards. While the failures outlined in this chapter—such as unresolved complaints, inspection delays, and discrepancies in enforcement—paint a grim picture, they also highlight a disturbing pattern: the deliberate misuse and omission of critical data fields,

most notably the Last Inspection Date. This manipulation not only obfuscates accountability but also amplifies the disconnect between policy intentions and real-world outcomes.

The Alteration of the Last Inspection Date Field: A Clear Obstruction

The Last Inspection Date field was designed to track the department's most critical function—inspections of complaints and violations. Instead, this field has been deliberately altered to store unrelated data, such as geographic coordinates (latitude/longitude). This decision, whether made intentionally to evade accountability or out of systemic mismanagement, has far-reaching consequences:

- **Obfuscation of Timelines:** By removing dates, SDCI has made it impossible to determine when—or if—inspections occurred.
- **Shielding Violators:** Without inspection dates, landlords and developers can evade accountability, even for egregious violations that remain unresolved for years.
- **Erosion of Oversight:** This alteration hinders the ability of auditors, advocates, and the public to assess departmental performance, creating a significant barrier to accountability.

Broader Systematic Failures

While the deliberate misuse of the Last Inspection Date field is the most striking example of SDCI's failures, it reflects a broader pattern of systemic dysfunction, including:

1. **Favoritism Toward Landlords and Developers:**
 - a. Complaints from tenants are deprioritized or closed without proper investigation.
 - b. Landlords are often given years—sometimes decades—to address violations, with Notices of Violation (NOVs) pending for over 5,000 days in some cases.
2. **Neglect of Tenant Complaints:**
 - a. Cases are routinely closed without inspections or follow-ups, leaving tenants in unsafe, uninhabitable conditions.
 - b. The lack of proper case tracking leads to repeated failures to address critical issues, such as water damage, mold, and structural hazards.
3. **Inefficient Resource Allocation:**
 - a. Missing location data, such as ZIP codes and cities, makes it difficult to identify complaint hotspots or allocate resources effectively.

- b. Staff must rely on manual reporting processes due to incomplete or inconsistent data, wasting valuable time that could be spent enforcing regulations.

[Search All Records](#)

Record Number: 003883-18CP

Code Compliance Complaint

Record Status: Under Investigation

Record Info:

[Record Details](#) [Status](#) [Related Records](#) [Attachments](#) [Inspections & Appointments](#) [Notes](#)

Payments:

[Fees](#)

Work Location

Contacts

Application Information

Complaint Information

What is your complaint?:

My landlord is retaliating against me by raising my rent. 9 months ago I requested repairs in my apartment (the third time the repairs had been scheduled, and then 3 days later notified me that they'd be raising my rent; however, the notification was not in writing, and I was not given a copy of the notice. I am in compliance with the Rental Unit Conversion Regulation Ordinance. I use an online payment portal (provided by Cornell & Associates, my landlord) to pay my rent. It is specified by them, and limits my payments to a narrow range of days around the 1st of the month. As Cornell & Associates assume I am in compliance with my rental agreement by paying my rent with it, and I have receipts for every month indicating that I have paid my rent. I have also been notified by the city that I am in compliance with the ordinance. I am in my 'stack' (with the same floor plan in the same position) are having their rents increased, nor are any other units (on approximately 50 apartments. This felt like cut-and-dry rental retaliation when they attempted to raise my rent after performing repairs. 9 months later they realized they botched it, they've begun harassing me and making further efforts to raise my rent.

Housing Unit Number (if applicable): #306

How many residential units exist on the property? (If applicable): 48

Do you want your contact information to remain confidential?: Yes

Would you like to know the results of the inspection?: Yes

Floating residence and building info

Is this building a Floating Residence?: No

Lot:-- Subdivision:--

[About Our Digital Properties](#) [Privacy Policy](#)

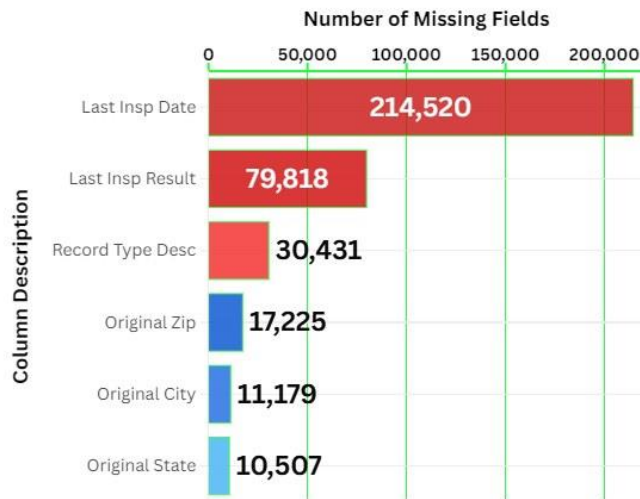
Critical Missing Data in Tenant Complaint & Violation Records (214,520 Rows)

A Barrier to Accountability: The Seattle Department of Construction and Inspections (SDCI) has systematically failed to utilize critical data fields like Last Inspection Date, severely impairing its ability to enforce regulations, track complaint timelines, and ensure transparency.

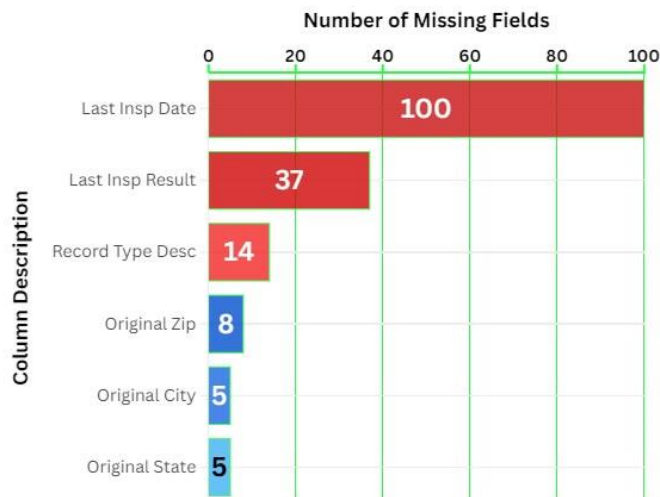
Whether the decision to repurpose this field for location data was deliberate or a result of neglect, the outcome is the same: tenants are left vulnerable, and reports that should hold landlords accountable are impossible to generate effectively.

Enter series to show

Missing Fields



Missing Percentage



Conclusion: The Need for Immediate Action

The manipulation of the Last Inspection Date field is not an isolated issue—it is a symptom of the broader systemic failures that plague SDCI.

The Role of STLCA: A Necessary Shift

The introduction of the Seattle Tenant and Landlord Compliance Authority (STLCA) could not have come at a more critical time. This independent oversight body represents the city's best hope for breaking the cycle of corruption, negligence, and favoritism that has plagued SDCI for years. By removing enforcement and regulatory responsibilities from SDCI, STLCA can restore integrity and accountability to the system, ensuring tenant protections are no longer undermined by the department's systemic failures.

The mishandling of key data fields like Last Inspection Date and Last Inspection Result is not merely an administrative oversight—it is a clear and deliberate obstruction of accountability. These fields are essential for tracking timelines, enforcing compliance, and documenting outcomes. Their absence makes it impossible to hold landlords accountable or to measure SDCI's enforcement performance, creating a regulatory vacuum where tenants' rights are systematically ignored.

A Snapshot of Current Failures

Seattle's housing oversight system is in a state of crisis, with persistent gaps in enforcement leaving tenants unprotected and essential housing standards unmet. Despite the resources and mandates available to the Seattle Department of Construction and Inspections (SDCI), critical failures in complaint resolution and inspection processes continue to undermine tenant safety. Below are the issues that tenants across Seattle face and their outcomes.

Unresolved Complaints:

- **Thousands of Unresolved Cases:** Public records reveal a staggering backlog of unresolved tenant complaints, many of which involve urgent issues such as heat and hot water outages, pest infestations, sewage leaks, and structural risks.
- **Unregistered Properties:** A significant number of rental properties operate outside compliance, highlighting gaps in enforcement under the Rental Registration and Inspection Ordinance (RRIO).
- **Premature Closures:** Numerous complaints are marked as "Admin closed", "Withdrawn" and "No Violation Found", without being adequately resolved. This practice creates the illusion of progress while leaving tenants in unsafe conditions.

- **Habitability Standards Ignored:** Data indicates that advisory violations, which are recommendations rather than enforceable actions, are frequently used to allow landlords to sidestep meaningful improvements.

In January 2023, a tenant reported serious habitability issues to the Seattle Department of Construction and Inspections (SDCI), including a prolonged lack of hot water, chipping lead paint, unclean water, and mold growth due to poor ventilation. Despite extensive evidence provided—such as photographs of mold, lead swab tests confirming contamination, and visible water damage—Inspector Chris Johanning dismissed the case as "No Violation Observed" on February 3, 2023. The case was closed without a thorough investigation, disregarding clear evidence of dangerous living conditions.

HOW MANY APTS ARE W/O HOT WATER ON THESE BELOW FREEZE DAYS?

416 no hot water
#710 - No Hot Water for 2 days now
#711 #916 no hot water
#713 - no hot water
#407 - No hot water for 2 days, huge rip in hallway that leaks
#407

414 - No Hot Water

416 no hot water for 2 days



INSTRUCTIONS - PLEASE READ CAREFULLY

3M™ LeadCheck™ Swabs provide the user a convenient method to detect lead on any solid surface such as steel or any other metal structure, wood, brick, cement, plaster, or drywall. 3M™ LeadCheck™ Swabs also detect lead solder, lead leaching from porcelain enameled fixtures (sinks, tubs) and vinyl mini-blinds. This innovative swab can alert the user to the presence of hazardous levels of lead so that the proper precautions can be taken to avoid the harmful effects of lead. 3M™ LeadCheck™ is a screening test. It is not intended to be a quantitative test for lead. Please consult a certified laboratory to quantify a 3M™ LeadCheck™ result.

3M™ LeadCheck™ Swabs contain two glass ampoules of testing chemicals. For ALL TESTING APPLICATIONS, follow the steps found in HOW TO USE 3M™ LeadCheck™ - ACTIVATION.

3M™ LeadCheck™ Swabs have an indefinite shelf life.

NOTE: SEE INSTRUCTIONS FOR SPECIFIC SURFACE TESTING. LIQUID CAN DISCOLOR SURFACES BEING TESTED.

HOW TO USE 3M™ LEADCHECK™ SWABS

TEST RESULTS

- a) If the swab tip and/or test surface, turn pink or red the test is positive - A HAZARDOUS LEVEL OF LEAD IS PRESENT. In general, when the swab is used immediately after activation, the darker the developed pink color, the higher the lead content.
- b) If the swab or test area shows no pink or red color change, the test is negative - Lead is not detected in this test area. You should confirm that the swab is active by using the test confirmation card (see instructions below). Also read the section on lead chromate in the instructions for specific surface testing.

For each swab, all tests must be completed within two (2) minutes.

NOTE: 1. Swabs must be used immediately after being activated.
2. Once developed, swabs are not reusable.

HOW TO CONFIRM A 3M™ LEADCHECK™ RESULT

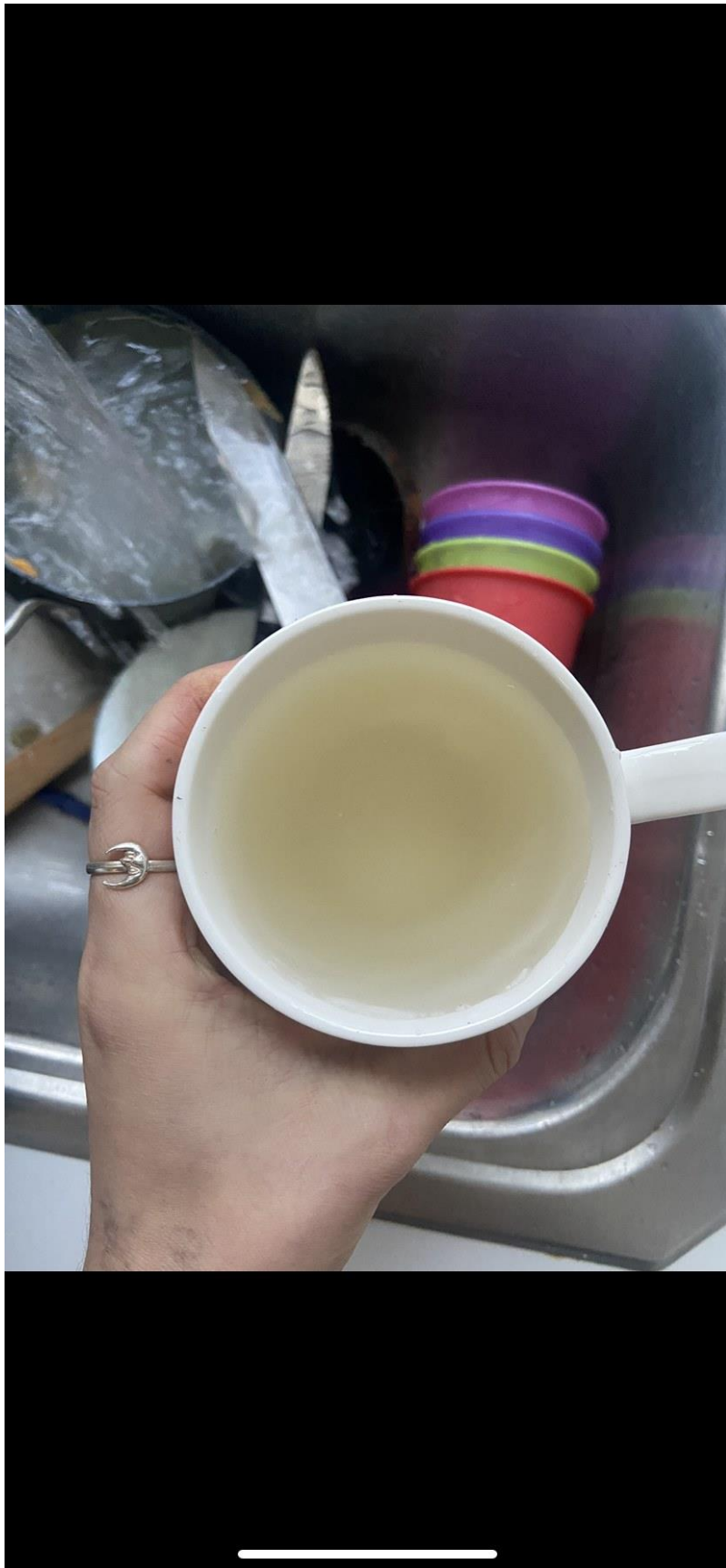
3M™ LeadCheck™ Swabs test lead. On each card are two assurance measures. The first is a 3M™ LeadCheck™ card. The second is a 3M™ LeadCheck™ card. If the card is negative, the test is negative.

CONFIRMATION OF A NEGATIVE RESULT

If the swab tip does NOT turn pink or red after rubbing the test area, squeeze a drop of 3M™ LeadCheck™ reagent onto the card. If a pink or red color develops, the swab was not detected.

2. LEAD

Marine... are typical... in these p... for the pin... decreases... or a 3M™ L... the test loca... dots on the c... the swab to th... proceed as fol...
a) Place the sw... reexamine the... minutes, 60 m... any color devel...





Seattle Services Portal

[Home](#) [My Records](#) [Help](#)

[Register for an Account](#) [Reports \(2\)](#) [Login](#)

[Search All Records](#)

Record Number: 011882-24CP

Code Compliance Complaint

Record Status: Completed

Record Info:

[Record Details](#) [Status](#) [Related Records](#) [Attachments](#) [Inspections & Appointments](#) [Notes](#)

Payments:

[Fees](#)

Inspections & Appointments

The Following Are Required:

There are no required inspections for this record number.

The Following Are Completed:

There are no completed inspections for this record number.



City of Seattle



Department of Construction & Inspections

Code Compliance Division

700 Fifth Ave

Suite 1900

PO Box 34019 Seattle, WA 98124-4019

Complaint Location:

1102 8TH AVE

SEATTLE, WA 98101

Record Number: 013091-22CP

Complaint Type: Housing, Landlord/Tenant

Complaint Outcome: No Violation Observed

Resolution Date: Jan 26, 2023

Complaint Report of Findings

Phone: (206) 615-0808

TTY: (206) 233-7156

Website: seattle.gov/sdci

XXXXXXXXXXOffice Location: 700 Fifth Avenue, 19th Floor of Seattle Municipal Tower

Alleged Complaint Description: Dear Seattle Department of Construction and Inspections, I am writing to file a complaint about the unacceptable living conditions at the apartment building where I currently reside. For months, my apartment has had a bed bug infestation that has not been properly addressed. Additionally, when I moved in, the apartment was not clean and did not have a refrigerator. The bathroom sink has also been clogged with sludge, and the hot water frequently turns off without warning. I have been told that I need to move out of my unit because it is uninhabitable, but I have been informed that there are no available units in the building for me to move to. I am concerned that the bed bugs will follow me to my next residence, and I am seeking financial compensation for the months that I have been living in substandard conditions. I request that the Seattle Department of Construction and Inspections investigates this matter and takes appropriate action to ensure that my current and future living situations are safe and sanitary. I would also appreciate any assistance in obtaining a refund for the time that I have been living in an uninhabitable apartment. Thank you for your attention to this matter. Sincerely, Rachel Roebke

Additional Information: Housing/POTA Complaint - Pre-Reg 001-0102479

Between January and March 2023, four additional complaints were filed by tenants at the same building, detailing similar issues: lack of hot water, non-functional elevators, and recurring water problems. These complaints, assigned to Inspector Shantel McEachin, were marked as "No Violation Observed" and closed without inspection or resolution. This pattern of closing complaints without adequate follow-up or accountability reflects a troubling disregard for tenant welfare.

Complaint Record 000252-23CP: January 8th, 2023 - "No Hot water No Notice. Three months. Toilet won't flush. Elevator down in 11 story building." - Closed March 7th, 2023 "No Violation Observed" without inspection.

Complaint Record 000216-23CP: January 5th, 2023- "No hot water in bathrooms in multiple units. Own bathroom without for seven days. No ETA from Management"- Closed March 7th, 2023 without inspection.

Complaint Record 000311-23CP: January 6th, 2023- "No hot water-elevator down" Closed February 27th, 2023 "No Violation Observed" without inspection.

Complaint Record 000383-23CP: January 10th, 2023- "No hot water for three months" - Closed March 7th, 2023 "No Violation Observed"

Case Study:

Neglected Habitability Standards In December 2022, a tenant at 1102 8th Avenue reported severe habitability issues, including a persistent bed bug infestation, a broken sink that caused flooding, and hazardous mold growth. Despite the gravity of the issues, SDCI marked the case as "No Violation Observed" in January 2023 without conducting an inspection or tenant outreach. The tenant faced months of uninhabitable living conditions, leading to a personal injury lawsuit against the property management. This case exemplifies the systemic failure to prioritize tenant safety and enforce accountability, leaving tenants vulnerable to prolonged harm. This case demonstrates significant negligence and its impacts:

1. Persistent Uninhabitable Conditions: The tenant experienced bed bug infestations, lack of a refrigerator, a bathroom sink that flooded, and hazardous mold growth for months. These conditions posed serious health risks and violated basic habitability standards.

2. Failure to Inspect: SDCI closed the case as "No Violation Observed" two months after the complaint without conducting an outreach inspection or verifying the tenant's claims. This decision ignored the tenant's documented concerns.

3. Financial and Emotional Stress: The tenant likely incurred additional expenses for pest control, alternative food storage solutions, and medical treatments. Living under such conditions can also take a toll on mental well-being. Escalation to Legal Action: The tenant, unable to resolve the issues through SDCI, has filed a personal injury lawsuit in the King County Superior Court, indicating the severity of harm caused by the prolonged neglect.

4. Loss of Trust in Public Systems: The tenant's plea for assistance highlights the lack of faith in SDCI's ability to protect residents, emphasizing systemic failures in addressing complaints and enforcing accountability.

5. Precedent of Negligence: This case is not an isolated incident. It underscores a pattern of arbitrary closures, lack of tenant-centered follow-ups, and reliance on incomplete landlord-provided information.

In May 2023, after months of no hot water, severe flooding on multiple floors—including four feet of flooding in the elevator shaft, prolonged elevator outages of the only working elevator in an 11 story, 173 unit building, and water and plumbing issues affecting the entire complex—Members of L.E.T.A. (Lowell Emerson Tenants Association) demanded an immediate response from SDCI. A limited inspection of only 4 units uncovered over 85 violations, including electrical and fire safety hazards on every common floor in both buildings. Despite a two-month deadline for repairs to be completed, the issues persisted and repairs were not being addressed and compliance would not be enforced by SDCI until June 2024, over a year after the NOV's were issued.

See full details of the Notice of Violations here: [1055966-VI](#) & [1055976-VI](#)

By May 31, 2024, no substantial progress had been made on the repairs required to be completed by August 2023. Despite unresolved Notices of Violation (NOVs) and ongoing tenant-reported issues, MMC was allowed to self-certify RRIO inspection compliance in November 2023, claiming that 100% of the units met the required standards. This was accomplished simply by paying the certification fees, bypassing the necessary external verification process. This lack of enforcement further highlights the ineffectiveness of regulatory oversight, allowing unsafe conditions to persist unchecked. In an attempt to follow up, I emailed Anissa Streb regarding the status of the outstanding NOVs from the previous year. As Anissa was unavailable, I was directed to Lisa Swartzenberger, who informed me that the property had been granted an extension to become compliant and that SDCI was still "working with them." This response raised serious questions, as SDCI's own policies prohibit granting extensions on projects that have not made substantial progress. To date, no progress had been made at the Lowell Emerson Apartments concerning the violations. This situation led me to question how MMC was permitted to self-

certify RRIO inspection compliance despite the existence of outstanding NOV's. When I pressed for answers, Lisa referred me to the public records department, suggesting I search for the relevant information in the portal. This response reflects a troubling lack of accountability and transparency, leaving tenants vulnerable and without assurance of safe, habitable living conditions.

Address: 1020 University

Search Clear

AN E-MAIL IS REQUIRED TO FILE A COMPLAINT
INSPECTORS ARE SUPPOSED TO INSPECT
WHY ARE COMPLAINTS BEING CLOSED
"NO CONTACT"?

140 records match your search results.
Click any of the results below to view more details.

Showing 1-25 of 140 | Download Results

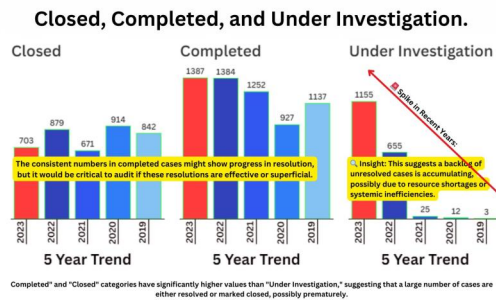
☐	Created Date	Record Number	Record Type	Status	Address	Property/Project Name	Description	Expiration Date	Ac
☐	04/18/1988	EQP-BP-01328	Boiler Equipment Certification	Active	1020 UNIVERSITY ST SEATTLE	CIS BOILER			
☐	04/18/1988	EQP-BP-01329	Boiler Equipment Certification	Temporarily Out of Service	1020 UNIVERSITY ST SEATTLE	HWS TANK			
☐	05/20/2020	00005219-BD	Building Data	Existing	1020 UNIVERSITY ST SEATTLE	1020 UNIVERSITY ST APARTMENTS	MULTIFAMILY		
☐	10/24/2024	0116930-24CP	Code Compliance Complaint	Closed	1020 University ST		no water whole building		
☐	closed same day 10/24	0116930-24CP	Code Compliance Complaint	Closed	1020 University ST		no water whole building		
☐	closed same day 10/24	0116930-24CP	Code Compliance Complaint	Closed	1020 University ST		no water whole building		
☐	08/30/2023	010301-23CP	Code Compliance Complaint	Closed	1020 University ST		no secured entrance no call box		
☐	closed 9/13	010301-23CP	Code Compliance Complaint	Closed	1020 University ST		no secured entrance no call box		
☐	05/09/2023	004832-23CP	Code Compliance Complaint	Closed	1020 University ST		no hot water		
☐	admin closed 5/13	004832-23CP	Code Compliance Complaint	Closed	1020 University ST		no hot water		
☐	08/14/2022	008625-22CP	Code Compliance Complaint	Closed	1020 University ST		elevator not working at handicap access		
☐	admin closed 8/14	008625-22CP	Code Compliance Complaint	Closed	1020 University ST		elevator not working at handicap access		
☐	09/24/2021	007985-21CP	Code Compliance Complaint	Closed	1020 UNIVERSITY ST SEATTLE		same issue 2 years old		
☐	09/05/2020	007865-20CP	Code Compliance Complaint	Closed	1020 University ST		elevator not working for handicap access		
☐	admin closed 9/9	007865-20CP	Code Compliance Complaint	Closed	1020 University ST		elevator not working for handicap access		
☐	09/20/2020	004069-20CP	Code Compliance Complaint	Completed	1020 UNIVERSITY ST SEATTLE		Noise		

Complaint 0116930-24CP.

In October 2024, tenants at Lowell Emerson Apartments reported a total loss of hot water—a violation of Seattle’s habitability standards. Despite the severity of the issue, the complaint was closed by SDCI on October 29, 2024, under the category “Withdrawn” No inspection was conducted to verify resolution, And the reporting tenant did not withdraw it And when the inspector was questioned, they stated they had heard from the landlord that the water was back on, which was false information. The hot water would not return to service for another week., leaving tenants without hot water for over a month. This arbitrary closure highlights systemic failures in SDCI’s enforcement process, where critical complaints are prematurely dismissed without follow-up or resolution. Such actions undermine tenant protections, enable negligent landlords, and erode public trust in SDCI’s oversight. This case underscores the urgent need for accountability and mandatory inspection follow-ups before closing complaints.

Complaint Record 000897-23CP: August 3rd, 2023 -"no hot water for six days, having to heat water on the stove and reduced to taking "bird baths." The complaint was marked as a duplicate with no reference to a parent complaint and dismissed with no further action.

Complaint Record 010013-23CP: August 23rd, 2023 - "no hot water for eight months, requesting to break their lease and a full deposit refund". The complaint remains under investigation with no resolution to date.



This complaint concerns a rental property tied to RRIO Record Number 001065-23CP (Pre-registration #001-0146962) and its duplicate Record Number 000897-23CP. Despite these records referencing each other, there is no evidence that the property in question is registered in the RRIO system as required. Upon further investigation, it appears the pre-registration number may be associated with a completely different property. Furthermore, complaints filed against this property were closed due to "no contact," indicating that SDCI did not adequately follow up or ensure resolution. This raises concerns about whether the property was operating as an unregistered rental, evading inspection and compliance, and whether tenants were left in potentially substandard living conditions without proper enforcement. This highlights a failure in accountability and transparency within the RRIO program.

The Disconnect Between SDCI's Claims and Reality:

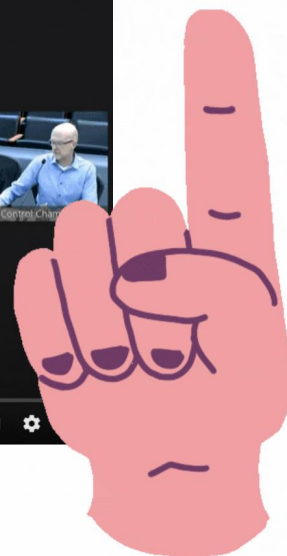
Housing & Human Services Committee 2/28/2024

Our Numbers (2023)

- Calls answered Renting in Seattle and RRIO lines – 17,231. Up 40% over 2022
 - Questions and complaints referred to a specialist or inspector – 6,420. Doubled since pre-pandemic
 - Calls for RRIO Customer support - 9,353
- Enforcement cases – 341. Very high pre-enforcement voluntary compliance.
- Renter households displaced by development activity – 668 ; Households that applied and qualified for financial assistance – 137
- Renter households qualifying for EDRA – 90
- RRIO Registrations – 27,282 properties with 174,052 units
- RRIO inspections – 4,030 properties

Seattle Department of Construction & Inspections

33:29 / 1:21:18 • Introduction to Seattle Department of Construction and Inspections



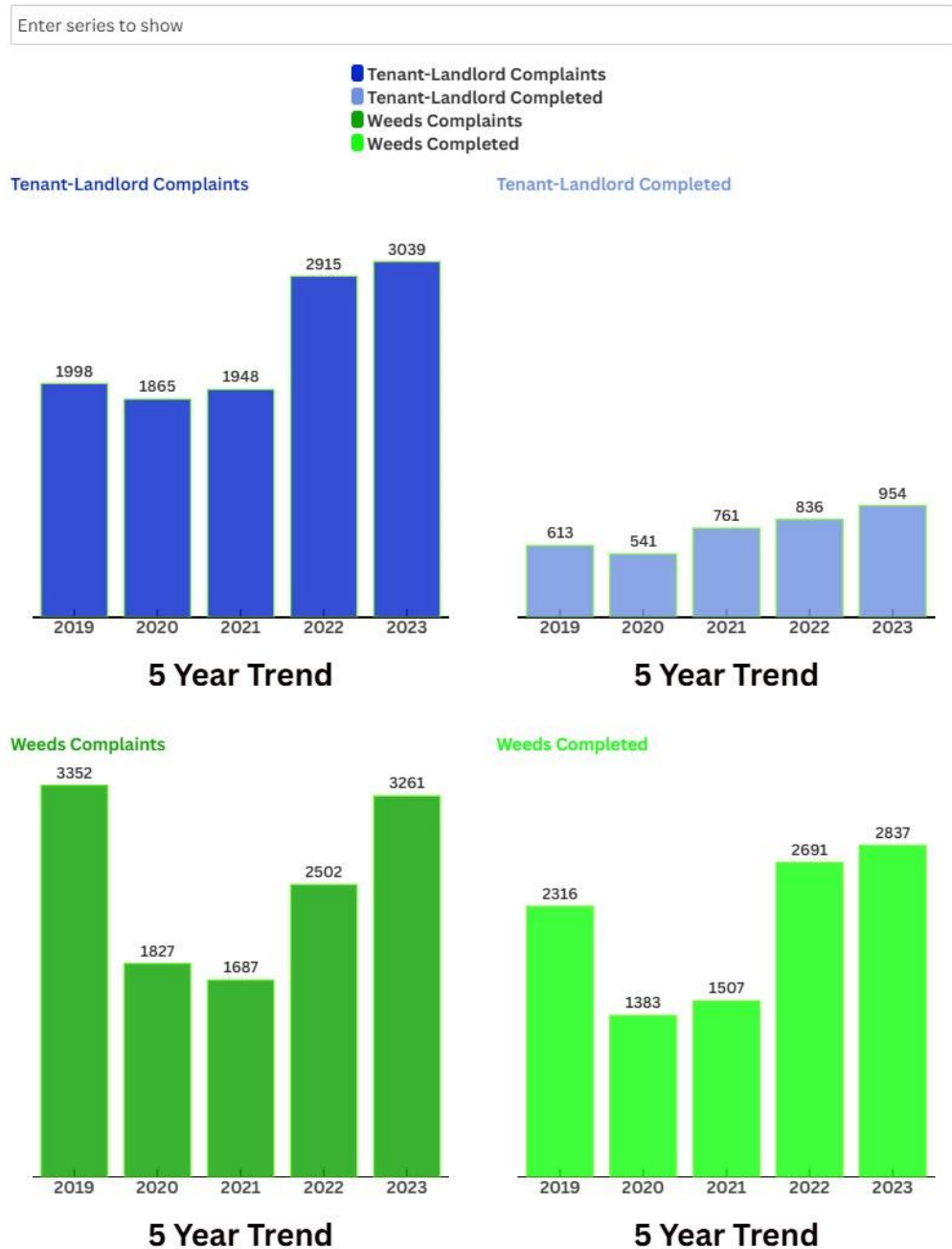
Misalignment Between Publicized Successes and Real-World Outcomes

- **Inspection Coverage Gaps:** SDCI reports significant progress under the Rental Registration and Inspection Ordinance (RRIO), yet less than **10% of rental properties** are inspected annually—far below program targets. Properties with multiple violations often receive repeated extensions or minimal penalties, fostering a culture of non-compliance.
- **Missed Fines and Accountability:** Millions of dollars in fines for violations go uncollected, depriving tenants and the city of resources that could be reinvested in housing safety.
- **Weeds vs. Landlord-Tenant Complaints:** The budget prioritizes activities like enforcing weed-related violations, which may have fewer systemic implications, over resolving landlord-tenant disputes. A direct comparison of fines and violation rates shows that weed-related issues receive more enforcement attention than critical habitability complaints like heat outages or structural risks. This misalignment underscores the need for oversight to redirect resources toward tenant protections.

Weeds Complaints Are Consistently Prioritized Over Tenant Habitability Issues

The high number of weed-related complaints and enforcement actions suggests that disproportionate resources may be allocated to these cases.

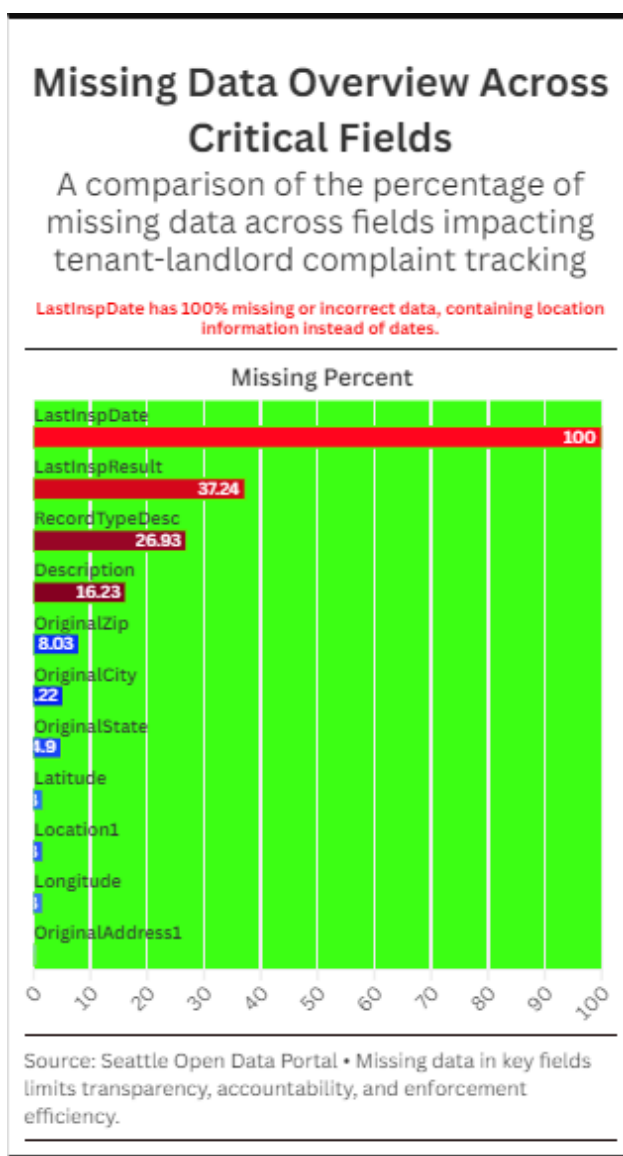
This raises concerns about whether the SDCI is prioritizing less urgent issues at the expense of tenant safety and habitability.



Source: SDCI Open Data Portal https://data.seattle.gov/Built-Environment/Code-Complaints-and-Violations/ez4a-iug7/data_preview

While the number of Tenant-Landlord complaints received by SDCI is comparable to weed-related complaints, the disparity in case resolution is alarming. Only 9% of Tenant-Landlord complaints are closed or completed, indicating a troubling overprioritization of weed complaints at the expense of habitability and tenant safety.

The Need for Reform



The Disconnect Between SDCI's Claims and Reality

The Seattle Department of Construction and Inspections (SDCI) has claimed success in advancing tenant protections and addressing habitability issues, but the lived experiences of tenants tell a different story.

Misleading Statistics and a Mountain of Unresolved Cases

In February 2024, Geoff Tallent, Manager of Rental Programs and the RRIO, and Nathan Torgelson, Director of SDCI, presented to the City Council, boasting about fielding over 17,000 landlord-tenant issues. However, this figure is misleading, as it includes complaints unrelated to

landlord-tenant matters—such as those about construction, weeds, vacant buildings, and shoreline issues.

Records from the Seattle Open Data Portal show that only 3,059 landlord-tenant cases were reported in 2023, of which just 945 were resolved. Nearly 9,000 cases remain unresolved, with some languishing in the system for up to 16 years.

Prioritizing Landlords Over Tenant Protections

In November, during an RRIO program audit, Tallent explained SDCI’s “practical, educational, problem-solving approach” with landlords, designed to help them understand violations and work through issues. While this may sound reasonable, it has left tenants trapped in substandard housing.

What’s worse, Tallent repeatedly emphasized that “landlords are our customers,” highlighting a troubling prioritization of landlords over tenant rights. Extensions are routinely granted to landlords, even for non-emergency violations, under the guise of landlord convenience.

Enforcement, Not Education, Is the Solution

This approach undermines SDCI’s responsibility to enforce tenant protections. Municipal codes exist to safeguard tenants, not to accommodate landlords’ convenience. Providing landlords with years—or even decades—to address violations while tenants remain in unsafe conditions is indefensible. Enforcement is not education, and tenants shouldn’t bear the burden of delays caused by a lack of landlord accountability.

Seattle’s inclusive nature, which welcomes refugees and individuals from diverse backgrounds, means many tenants are unaware of their rights or what constitutes acceptable living conditions. Landlords rarely educate tenants, leaving them in the dark. A truly effective system must focus on proactive enforcement to protect tenants, not prolonged education that only extends their suffering.

The Reality: Delays Lead to Prolonged Suffering

The reality is clear: SDCI’s “practical, educational stance” is delaying meaningful action and prolonging tenant suffering. Enforcement must take precedence if tenant rights and safety are to be upheld.

The Disconnect Between SDCI’s Claims and Reality

While the Seattle Department of Construction and Inspections (SDCI) has publicly claimed success in advancing tenant protections and addressing habitability issues, the lived experiences of Seattle tenants paint a starkly different picture.

Misleading Statistics and a Mountain of Unresolved Cases

In February 2024, Geoff Tallent, Manager of Rental Programs and the RRIO, along with Nathan Torgleson, Director of SDCI, presented to the City Council, boasting about fielding over 17,000 landlord-tenant issues. At first glance, this appears to be a significant achievement; however, a closer examination reveals that these statistics are misleading. The figure of 17,000 includes all complaints handled by SDCI, such as those related to construction, land use, overgrown weeds, vacant buildings, noise, shoreline issues, emergencies, trees, and more—not solely landlord-tenant matters. According to records from the Seattle Open Data Portal, only 3,059 landlord-tenant cases were reported to SDCI in 2023. Of these, the department closed or completed just 945 cases, leaving a backlog of nearly 9,000 unresolved cases. Some of these cases have remained in the system for as long as 16 years, calling into question SDCI's claims of progress and effectiveness in serving tenants.

Sever Bias towards Landlords

In November, during the audit of the RRIO program, Geoff Tallent stated that SDCI takes a "practical, educational, problem-solving approach" with landlords, aiming to help them understand violations and work through the issues. While this approach may sound reasonable on paper, in practice, it has left many tenants in despair, trapped in substandard housing conditions.

It's particularly telling—and deeply troubling—that during this presentation, Geoff repeatedly emphasized that "landlords are our customers." He stated this several times, alongside representatives from the auditor's office, underscoring the department's prioritization of landlords over tenants. According to him, landlords are their "#1 customers." While there was some brief acknowledgment of tenant safety when discussing inspections, the focus quickly shifted back to landlords, with justification for granting extensions due to difficulties in finding contractors or because the violations weren't deemed "emergencies." The reasoning? "Landlords are our customers."

This attitude is not only upsetting but disturbing. It highlights a fundamental misalignment with the mission of enforcing tenant protections and municipal codes. These codes exist to uphold tenants' rights and ensure safe, habitable housing—not to cater to landlords' convenience. This

isn't about granting landlords indefinite leniency to comply "whenever it's convenient." It's about enforcing the law and protecting tenants' safety.

Tenants are not simply collateral in a transactional relationship where the “customer” is a landlord’s wallet. The focus must be on accountability and justice, not on perpetuating a system where landlords receive preferential treatment while tenants are left to suffer in unsafe conditions.

The notion of providing landlords with decades of leeway to address violations, while tenants continue to live in unsafe and unhealthy environments, is far from practical. Enforcement should not be mistaken for education. Many tenants, especially those from low-income or marginalized communities, may not even realize they are living in substandard housing. Seattle's inclusive nature—welcoming refugees and individuals from diverse backgrounds—means that many tenants lack knowledge about what constitutes fair treatment or acceptable living conditions. Landlords, of course, are not volunteering this information, leaving tenants unaware of their rights and the standards they should expect.

Enforcement, Not Education, Is the Solution

This approach undermines SDCI’s responsibility to enforce tenant protections. Municipal codes exist to safeguard tenants, not to accommodate landlords’ convenience. Providing landlords with years—or even decades—to address violations while tenants remain in unsafe conditions is indefensible. Enforcement is not education, and tenants shouldn’t bear the burden of delays caused by a lack of landlord accountability.

Seattle’s inclusive nature, which welcomes refugees and individuals from diverse backgrounds, means many tenants are unaware of their rights or what constitutes acceptable living conditions. Landlords rarely educate tenants, leaving them in the dark. A truly effective system must focus on proactive enforcement to protect tenants, not prolonged education that only extends their suffering.

A truly effective approach must prioritize proactive enforcement over prolonged education. The current system of inspections and compliance merely extends the time tenants are forced to endure substandard housing, with all the well-documented adverse effects this entails. For tenants to live safely and with dignity, inspections and enforcement must be swift, decisive, and focused on holding landlords accountable—not on endless education at the expense of tenant well-being.

The reality is that this so-called "practical, educational stance" is, in fact, prolonging the resolution of critical issues. Instead of ensuring timely fixes, it delays meaningful action and leaves tenants suffering in unacceptable living conditions. While the intent may be to guide landlords through the process, the outcome is clear: problems persist, and tenants bear the

brunt of the consequences. Enforcement must take precedence over prolonged education if real progress is to be made.

The Reality: Delays Lead to Prolonged Suffering

The reality is clear: SDCI's "practical, educational stance" is delaying meaningful action and prolonging tenant suffering. Enforcement must take precedence if tenant rights and safety are to be upheld.

Proposed Solution

The creation of an Independent Housing Oversight Body offers a transformative approach to addressing these challenges.

This entity would:

- Proactively enforce habitability standards with a focus on tenant safety, prioritizing properties with high volumes of complaints.
- Streamline complaint resolution and inspection processes with measurable transparency.
- Integrate with advanced tools, such as real-time data entry systems, to enhance accountability.
- Bridge gaps between existing programs like the Rental Registration and Inspection Ordinance (RRIO) and tenant complaint tracking systems.

Key Benefits

Restoring Public Trust:

- Transparent reporting and measurable outcomes ensure accountability and equity.
- Demonstrates a citywide commitment to tenant rights and safety.

Financial Sustainability:

- Reallocate funds from underperforming programs and utilize fines and penalties to support operations.
- Secure funding through mechanisms like the Real Estate Excise Tax (REET), without increasing taxpayer burden.

Improved Tenant Protections:

- Reduce unsafe housing conditions through proactive enforcement.

- Deliver timely resolutions for tenant complaints, ensuring equitable outcomes.

Economic and Social Impact

- Protect tenants, particularly vulnerable populations, from exploitative practices.
- Enhance Seattle's standing as a leader in equitable housing reforms.

Data Discrepancies and Underperformance

- **Incomplete Records:** 169,310 fields in the SDCI portal lack critical details, such as inspection dates, inspection results or cross-references for duplicate complaints. These inconsistencies obscure the true scale of the problem and hinder efforts to track progress.

When critical fields like **Last Inspection Date** and **Last Inspection Result Type** are missing from public records, it severely hampers transparency, accountability, and effective Key Performance Indicator (KPI) reporting for entities like SDCI. Here's an overview of normal reports typically required by a compliance inspection agency, why they are critical, and how the missing fields make such reporting nearly impossible:

1. Inspection Backlog Report: Tracks the number of open cases, their duration, and progress toward resolution.

2. Resolution Rate and Timeliness: Measures how efficiently complaints and violations are resolved within a given timeframe (e.g., 30, 60, or 90 days).

3. Enforcement Activity: Monitors enforcement actions taken, such as Notices of Violation (NOVs), fines levied, and compliance achieved..

4. Compliance Rate by Property Type: Analyzes trends in compliance across property categories (e.g., single-family, multifamily, commercial).

5. Unresolved Complaints and Aging Report: Tracks the total number of unresolved complaints and their duration.

Critical Fields:

Last Inspection Date: Identifies overdue inspections and highlights gaps in compliance checks. Unable to calculate the average time between inspections or the time cases remain open. Indicates when a case was last reviewed or acted upon. tracks follow-up actions to ensure compliance post-violation Identifies properties overdue for inspections.

Last Inspection Result: Determines whether prior inspections flagged unresolved issues. Lack of insight into inspection follow-ups leaves gaps in accountability metrics. Confirms whether a case was resolved or escalated after inspection. Identifies cases where violations were found and enforcement actions initiated.: Determines compliance status across properties. Identifies whether unresolved complaints stem from failed inspections or other issues.

Challenges Without Fields:

- Inability to track resolution timelines for reporting to the City Council.
- Risk of unresolved violations being closed arbitrarily due to missing data.
- Difficult to show the council how many enforcement actions led to compliance.
- No way to distinguish between active enforcement and systemic inaction.
- No way to assess which property types are most likely to be non-compliant.
- Reduces SDCI's ability to target high-risk properties for proactive enforcement.
- No visibility into aging complaints or systemic delays in addressing tenant issues.
- Unable to highlight backlogs for council oversight and resource allocation.

Impact on Council Reporting

Without these fields, SDCI cannot:

1. Provide clear evidence of progress on unresolved complaints and violations.
 2. Identify systemic gaps, such as delays in inspections or enforcement.
 3. Justify budget increases or resource allocations due to the inability to quantify operational inefficiencies.
- **Underutilized Tools:** Technologies like Zendesk and Accela, intended to streamline reporting and transparency, are not fully utilized, leaving data fragmented and inaccessible to the public.

Conclusion

The systemic failures in Seattle's housing oversight system reveal a troubling gap between policy intentions and real-world outcomes. The overwhelming backlog of unresolved complaints, inspection delays, and reliance on ineffective enforcement mechanisms erode

public trust and leave tenants at risk. These failures highlight the urgent need for a reimagined approach—one that prioritizes accountability, transparency, and tenant safety.

The Independent Housing Oversight Body represents a transformative solution to these challenges, addressing the root causes of inefficiency and ensuring that Seattle’s housing enforcement aligns with its values of equity and justice.

A Bold Solution: The Seattle Tenant Landlord Compliance Authority (STCLA)



To address these persistent issues, the establishment of an **Independent Housing Oversight Body** is proposed. This entity is designed to transform Seattle’s housing compliance system by prioritizing tenant safety, accountability, and transparency.

Core Functions

Proactive Enforcement:

- Conduct routine, habitability-focused inspections aligned with Housing and Building Maintenance Code (HBMC) standards.
- Ensure unregistered properties are brought into compliance.

Streamlined Complaint Resolution:

- Respond to tenant complaints efficiently and transparently, with real-time tracking and measurable outcomes.
- Close gaps between RRIO compliance and complaint investigation, as originally intended.

Accountability and Transparency:

- Publicly report on complaint resolutions, inspection outcomes, and enforcement actions to rebuild public trust.
- Leverage technology like real-time data entry tools for accurate and timely updates.

Funding Sustainability:

- Utilize diverse revenue streams including REET allocations and collected fines, to fund operations without additional taxpayer burden. Real Estate Excise Tax (REET)
 - REET 1: Allocate funds for infrastructure improvements such as STLCA inspection hubs.
 - REET 2: Fund technology upgrades like IT systems for complaint tracking.
- Fines and Penalties: Revenue from violations to cover operational costs.
- State and Federal Grants: Apply for HUD grants and Community Development Block Grants (CDBG) to support tenant protections
- Reallocation of Existing Budgets: Transition underutilized SDCI resources into the STLCA.

The Vision

The Seattle Tenant Landlord Compliance Authority represents a commitment to equitable, tenant-focused reforms that ensure every Seattle resident can live in safe and dignified housing. By addressing the root causes of systemic failures and prioritizing tenant welfare, this proposal sets the stage for a transformative shift in how housing compliance is enforced in Seattle.

This is not just a response to a crisis—it is an opportunity for the city to lead with integrity, restore trust, and establish a housing framework that reflects its values of equity and inclusion. Now is the time to act and make meaningful change for Seattle’s tenants.

The Oversight Body – A New Path Forward

- **Objective:** Present the solution and its core functions.
- **Content:** Mission and objectives of the Independent Oversight Body. How it will resolve the gaps in tenant safety and housing compliance. Key functions: Habitability-focused inspections using HBMC standards. Transparent and accountable reporting systems. Seamless integration of RRIO and complaint resolution mechanisms. Collaboration with existing city agencies while ensuring independence.
- **Objective:** Offer solutions for better data transparency and accountability.
- **Content:** Full utilization of Zendesk and Accela for real-time, transparent reporting. Recommendations to: Track last inspection dates and ensure they are included in all reporting. Cross-reference duplicate complaints with their originating files. Validate that complaints are linked to registered properties in RRIO. Publish detailed public reports on complaint timelines, resolutions, and inspection outcomes.

modern practices for efficiency and transparency in field inspections transformative step for Seattle’s housing compliance system:

Proposed Solution: Real-Time Field Data Entry with Tablets

Objective: Empower inspectors to perform their duties more efficiently by enabling real-time data entry and reporting during inspections.

How It Works:

1. **Equipping Inspectors with Tablets:** Each inspector is provided with a tablet equipped with specialized software integrated with the city’s data systems (e.g., Zendesk for complaints, Accela for inspections and permits). The tablets come with features like: Real-time data entry fields for inspection details. Camera functionality for capturing photographic evidence. Geotagging for location-specific validation. Built-in checklist based on Housing and Building Maintenance Code (HBMC) standards.
2. **Streamlined Inspection Workflow:** Inspectors fill out inspection forms directly on the tablet during site visits. Photos and geotagged evidence are automatically attached to

the inspection report. The system flags any inconsistencies or mandatory follow-up actions before final submission.

3. **Immediate Data Synchronization:** Once the inspection is completed, the tablet syncs all data to the city's centralized database in real-time. Inspection outcomes are immediately accessible to relevant departments, landlords, and tenants (via a public-facing portal if appropriate).

Benefits:

1. **Improved Efficiency:** Reduces manual data entry back at the office, saving time and resources. Accelerates the reporting process and follow-ups on violations.
2. **Enhanced Transparency:** Real-time updates ensure stakeholders have access to accurate, up-to-date information. Clear photographic evidence strengthens the credibility of inspection outcomes.
3. **Data Integrity:** Minimizes errors associated with delayed or manual data entry. Ensures consistent data collection and reporting standards.
4. **Stronger Enforcement:** Violations are flagged and recorded immediately, reducing delays in enforcement actions. Real-time geotagging deters fraudulent claims of inspections not conducted.
5. **Public Trust:** Transparent, timely reporting reassures tenants that their complaints are being taken seriously and addressed efficiently.

Implementation Plan:

1. **Pilot Program:** Equip a small group of inspectors with tablets and test the workflow in a high-complaint-density area. Gather feedback from inspectors and stakeholders to refine the process.
2. **Integration with Existing Systems:** Ensure compatibility with Zendesk, Accela, and other city data systems. Develop user-friendly interfaces with mandatory fields to standardize reporting.
3. **Training and Rollout:** Train all inspectors on using the tablets and associated software. Implement the system citywide in phases, prioritizing areas with high inspection backlogs.
4. **Ongoing Evaluation:** Regularly analyze data on inspection times, complaint resolution rates, and reporting accuracy. Make iterative improvements based on inspector feedback and system performance.

Anticipated Challenges and Solutions:

- **Challenge:** Resistance to new technology. **Solution:** Provide comprehensive training and support. Highlight how tablets simplify the workload.
- **Challenge:** Initial costs of tablets and software. **Solution:** Use reallocated funds from underperforming programs or apply for grants aimed at improving municipal services.
- **Challenge:** Ensuring data security. **Solution:** Implement robust encryption and secure data transfer protocols.

Incorporation into Proposal:

This idea fits best into **Chapter 7: Building Accountability – Fixing the Reporting System**, as a recommendation to modernize inspection processes and enhance transparency. It can also be highlighted in **Chapter 6: A Roadmap for Reform**, where practical, forward-thinking solutions are outlined.

This approach not only addresses current inefficiencies but also positions Seattle as a leader in using technology to improve housing compliance and tenant safety.

Chapter 8: Why Now?

- **Objective:** Reinforce the urgency of this proposal.
- **Content:** Highlight increasing tenant complaints and unresolved habitability issues. Show how current systems fail to address housing inequities and enforcement gaps. Position Seattle as a leader in equitable housing compliance reform.

Chapter 9: Conclusion and Call to Action

- **Objective:** End with a compelling call for immediate action.
- **Content:** Recap the benefits of an independent oversight body. Emphasize tenant safety, equitable enforcement, and restored trust. Call on the City Council and public to support this transformative initiative.